

Recall & Removal

Who Removes Whom - and How

Officer | Mechanism | Threshold | Decided By

Civic Consul | Constructive vote of no confidence - names a successor in the same motion | Absolute majority | Assembly alone §2.6

Legat Consul | Legislative track, or Senate-referred popular track | 2/3 both chambers or 60% referendum | Legislature or electorate §2.13

SC Justice | For-cause only - constitutional breach, demonstrated permanent incapacity, or serious misconduct | 2/3 both chambers | Legislature, concurrent vote §4.3.a

Inferior Court Judge | Two for-cause tracks: legislative removal or judicial discipline under SC oversight | 2/3 both chambers (legislative track) | Legislature or judicial discipline §4.2

Monitor Generals & independent officers | Monitor Generals: initiated by the branch they do not audit; filing suspends authority (pay, benefits, term continue). Other officers: SC reviews category only, not facts | Monitor Generals: national referendum, 60% of votes cast with 55% participation. Other officers: SC confirms grounds (14 days) / 2/3 both chambers | Monitor Generals: the public. Other officers: Legislature, SC gatekeeps §9.9

LC domain officers | LC dismissal or Senate removal with published grounds | LC dismissal at any time; Senate majority of full seated membership | LC or Senate §2.4.a

Assembly / Senate Member | Expulsion by the member's own chamber | 2/3 own chamber | Their own chamber §3.2 · §3.5

Assembly / Senate Member | State recall - must be a political process; cannot violate this Constitution | State-defined | State legislature or voters §3.2 · §3.5

§7.9

The one rule that applies to every row above: expulsion, recall, and removal under any provision of this Constitution are civil and political processes. None of them constitute a criminal or civil legal proceeding, and none of them protect the removed officer from criminal prosecution or civil liability for the underlying conduct. A removed officer can still be charged. Constitutional accountability and criminal accountability run on separate tracks - always.

Two Design Details Worth Knowing

The Early Departure Clause

A member who resigns, is expelled, or is recalled at any point during a term is deemed to have served that full term for cooling-off purposes. Closes the obvious bypass - leaving early no longer resets the consecutive-term clock. Applies identically to Assembly members and senators.

The Election Blackout

SC justice removal and the §9.9 track for other independent officers require prior SC review for a removal vote within 180 days of a major national election. The Monitor General referendum follows its separate §9.9 deadlines.

Numbers Worth Remembering

Absolute majority

of the full seated Assembly removes the CC while electing a successor. The caretaker Acting CC under §2.6.a is not subject to §2.6 removal.

14

days for SC category review for other independent officers. A majority of justices may request an NRS-published extension within that period; silence without a timely extension lapses the proceeding for the session (§9.9).

6 mo

cooldown after a failed §9.9 removal attempt for non-Monitor officers. For a Monitor General, a failed referendum bars the same grounds for the remainder of that term.